

24SMCV06116 24SMCV06116

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Tentative Ruling

Jeffery David Horn v. Petros Andakyan, Case No. 24SMCV06116

Plaintiff's Motion to Compel Petros Andakyan's Deposition

Hearing Date: September 10, 2026

Background

This is a motor vehicle negligence case. On December 16, 2024, Plaintiffs Jefferey David Horn and Jonathan Paul Sparrman sued Defendants Petros Andakyan and Margarita Andakyan for damages arising from a car accident on February 2, 2023.

On April 23, 2026, Plaintiffs filed a Motion to Compel Petros Andakyan's deposition. On April 28, 2026, the Court granted an ex parte application to shorten time to hear the motion. On May 18, 2026, Petros Andakyan filed a stipulation to his liability, and Plaintiffs took the motion to compel off calendar.

On July 22, 2026, Defendants filed a Motion for an Mandatory Settlement Conference order. On August 3, 2026, instead of advancing the hearing on Defendants' motion, the Court referred the parties to a low-cost court mediation program.

On August 6, 2026, Plaintiff moved to Compel Petros Andakyan's deposition again. On August 18, 2026, the Court advanced the hearing. On August 27, 2026, Defendant filed opposition. On August 31, 2026, Plaintiff filed a reply.

Motion to Compel Deposition

If a party to an action is served with a deposition notice and fails to appear or proceed, the noticing party may move for an order compelling the deponent's testimony and the production of any documents described in the deposition notice. (Code Civ. Proc. § 2025.450(a).)

The Discovery Act confers upon litigants the right to take depositions without prior court order or approval and, accordingly, with an exception not here applicable, does not require any showing of good cause for the taking of depositions." (Kramer v.

Superior Ct. Of Los Angeles Cnty. (1965) 237 Cal.App.2d 753, 755.) A deponent may be examined “regarding any matter, not privileged, which is relevant to the subject matter involved in the pending action, whether it relates to the claim or defense of the examining party or to the claim or defense of any other party.” (Id. at 756.)

“A Motion under subdivision (a) shall comply with both of the following:

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

The motion shall be accompanied by a meet and confer declaration. . .” (Code Civ. Proc. § 2025.450(b).)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2025.450(g).)

Analysis

Following a review of the materials submitted in support of this motion, the Court finds that Plaintiff has met the procedural requirements for moving to compel a deposition. Horn noticed a deposition for August 5, 2026, and Defendant failed to appear. (Mehta Decl., ¶ 19.)

Andakyan is the subject of this action. Plaintiff alleges that he caused Plaintiff's injuries by hitting him with his car. Even though Andakyan has admitted liability, his deposition may lead to the discovery of admissible evidence regarding causation or injuries. Plaintiff has met his burden of showing that the deposition is relevant.

Andakyan has not moved for a protective order, nor does he provide any authority showing that the Court can deny a motion to compel a deposition because the deponent lives in a rural area and does not have internet.

Therefore, the Motion to Compel Deposition is GRANTED.

Conclusion

Plaintiffs' Motion to Compel Deposition is GRANTED.